

25STLC06244 25STLC06244

County: los-angeles

Division: Civil Law and Motion

Department: 26

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Case Number: 25STLC06244 Hearing Date: July 15, 2026 Dept: 26

TENTATIVE RULING:

Plaintiff Michael Maldonado's Motion for Summary Judgment is granted.

Plaintiff is to file and serve a proposed judgment within 20 days.

Analysis:

On August 14, 2025, Plaintiff Michael Maldonado ("Plaintiff") filed the instant action against Defendant Ernie Mistrik ("Defendant"). Defendant filed its General Denial on September 24, 2025, and proof of service of the same on October 3, 2025. On December 24, 2025, the Court denied Plaintiff's Motion to Quash Service of General Denial. (Minute Order, 12/24/25.)

Plaintiff filed and served the instant Motion for Summary Judgment on February 23, 2026. No opposition has been filed to date.

Discussion

Plaintiff moves for summary judgment on the Complaint pursuant to Code of Civil Procedure section 437c. On a motion for summary judgment or adjudication of a particular cause of action, a moving plaintiff must show that there is no defense by proving each element of the cause of action entitling the party to judgment on that cause of action. (Code Civ. Proc., § 437c, subd. (p)(1).) Then the burden shifts to the defendant to show that a triable issue

of one or more material facts exists as to that cause of action or a defense. (Code Civ. Proc., § 437c, subd. (p)(1).) Additionally, in ruling on the Motion, the Court must view the “evidence [citations] and such inferences [citations], in the light most favorable to the opposing party.” (Intrieri v. Superior Court (2004) 117 Cal.App.4th 72, 81 [citing Aguilar v. Atlantic Richfield Co. (2001) 25 Cal.4th 826, 843].)

Allegations in the Complaint

The Complaint alleges causes of action for breach of contract and common counts based on the following allegations. On or about October 25, 2022, Plaintiff wrote Defendant a check for \$20,000.00, with the annotation “loan” in the memo line. (Compl., ¶5 and Exh. A.) Plaintiff made the loan to help Defendant get out of what he called a “bad loan.” (Id. at ¶6.) The parties agreed Defendant would repay the loan in full, plus ten percent (10%) interest, on or before October 25, 2023. (Id. at ¶7.) The parties had a clear and mutual understanding that the money constituted a loan and was to be repaid by the agreed-upon date. (Ibid.) Plaintiff made several good-faith attempts to have the loan repaid; in January 2025, Defendant agreed to repay the loan starting with a \$400.00 initial payment. (Id. at ¶8.) Defendant only made one payment of \$400.00 after which Plaintiff received no other payments. (Ibid.)

Plaintiff's Initial Burden of Proof

The elements of a cause of action for breach of contract are (1) the existence of contract; (2) plaintiff's performance or excuse for nonperformance; (3) defendant's breach (or anticipatory breach); and (4) resulting damage. (Wall Street Network, Ltd. v. N. Y. Times Co. (2008) 164 Cal.App.4th 1171, 1178.) The elements for the second cause of action for money lent are (1) Defendant is indebted to Plaintiff in a certain sum; and (2) for money lent, paid or expended to, or for, the defendant. (Moya v. Northrup (1970) 10 Cal. App. 3d 276, 280.)

In support of the Motion, Plaintiff presents the following facts as undisputed. On October 25, 2022, Plaintiff issued a check the amount of \$20,000.00, which Defendant agreed constituted a loan and deposited. (Motion, Separate Statement, Fact Nos. 3, 5, 6; Maldonado Decl., ¶¶2, 4, 5 and Exh. A.) Defendant agreed to repay the full loan amount plus ten percent interest by October 25, 2023. (Motion, Separate Statement, Fact No. 6;

Maldonado Decl., ¶5.) Plaintiff fully performed by delivering the money, but Defendant failed to repay the loan as agreed. (Motion, Separate Statement, Fact Nos. 7-8; Maldonado Decl., ¶¶6-8.) Defendant made one payment of \$400.00. (Motion, Separate Statement, Fact No. 9; Maldonado Decl., ¶8.) As a result, Plaintiff has been damaged in the amount of \$20,000.00, less any payments made, plus interest. (Motion, Separate Statement, Fact No. 11; Maldonado Decl., ¶10.)

This evidence demonstrates the parties' agreement to lend Defendant money, Plaintiff's actual lending of money, Defendant's breach/non-payment, and Plaintiff's damages as a result. Based on the foregoing, Plaintiff has carried his initial burden of proof with respect to the elements of the causes of action for breach of contract and money lent, as required to prevail on the instant Motion for Summary Judgment.

Conclusion

Plaintiff Michael Maldonado's Motion for Summary Judgment is granted.

Plaintiff is to file and serve a proposed judgment within 20 days.

Judicial Assistant to give notice.